

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1748

By: Moore

AS INTRODUCED

An Act relating to death certificates; amending 63 O.S. 2021, Section 1-323, which relates to vital statistics records, confidential and exceptions; adding an exception; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-323, is amended to read as follows:

Section 1-323. A. To protect the integrity of vital statistics records, to ensure their proper use, and to ensure the efficient and proper administration of the vital statistics system, it shall be unlawful for any person to permit inspection of, or to disclose information contained in, vital statistics records, or to copy or issue a copy of all or part of any such record except to:

1. The person who is the subject of the record;
2. A parent named on the record or a person acting with the parent's permission unless that parent is currently incarcerated;
3. Someone acting with permission of the person who is the subject of the record;

1 4. Someone acting as a legal representative of the estate of
2 the person who is the subject of the record;

3 5. Someone acting as a legal representative of a person
4 involved in a probate of the estate of the person who is the subject
5 of the record, as demonstrated by affidavit;

6 6. An attorney licensed to practice in the United States who
7 demonstrates by affidavit that the record is necessary in order to
8 administer a client's estate;

9 7. Someone in receipt of a court order from a court of
10 competent jurisdiction ordering access to the record;

11 8. The Attorney General or to any district attorney upon
12 request in the course of a criminal investigation;

13 9. Only in the case of a death certificate, a funeral director;

14 10. A representative of the Department of Corrections, when the
15 subject of the record is under supervision of the Department of
16 Corrections;

17 11. A representative of the Department of Human Services acting
18 in accordance with Section 1-311.2 of this title; or

19 12. Any other person working in the best interest of the
20 subject of the record, as determined by regulations of the State
21 Commissioner of Health.

22 Provided, that death certificates shall be considered publicly
23 available records fifty (50) years after the death and birth
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1 certificates shall be considered publicly available records one
2 hundred twenty-five (125) years after the birth.

3 B. The State Department of Health shall, by July 1, 2017, make
4 available an online public index that includes, as is applicable,
5 the name, gender, date of birth, date of death, county of birth, and
6 county of death of all persons in its records. Birth data shall not
7 be added to the index until twenty (20) years after the birth.
8 Death data shall not be added to the index until five (5) years
9 after the death. The index shall be made available online at no
10 cost to users.

11 Private entities may request assistance from the Department in
12 receiving digital files, including all or part of the index
13 described in this subsection. Such private entities may be assessed
14 a fee that shall not exceed the cost of creating and transmitting
15 the digital file. The Commissioner may promulgate rules regarding
16 access to such digital files and applicable fees.

17 C. The Department may grant applications for electronic
18 verification of the existence of birth and death certificates for
19 legal and administrative purposes at any time following the birth or
20 death when such applications are made by:

- 21 1. A government agency in conduct of its official business;
- 22 2. A benefit-paying party including, but not limited to, an
23 annuity company, pension plan, or life insurance company in order to
24 determine benefit status;

1 3. A physician licensed to practice in the United States to
2 determine if a patient has been lost to care; ~~or~~

3 4. An attorney licensed to practice in the United States in
4 connection with any administrative matter; or

5 5. Other entities for fraud protection, subject to verification
6 of the entity's purpose by the Department.

7 The recipient of a record verification as provided for in this
8 subsection may not disclose to a party not involved in the issue for
9 which the verification was sought.

10 The Department may charge up to Four Dollars (\$4.00) for each
11 electronic birth or death verification, although such fee may be
12 waived when such request is received by an Oklahoma state or local
13 government agency. The recipient of a record verification as
14 provided for in this subsection may also be subject to fees levied
15 by a contractor retained by the Commissioner to provide such
16 service.

17 The Commissioner may promulgate rules necessary to implement the
18 provisions of this subsection.

19 D. The State Commissioner of Health may authorize the
20 disclosure of data contained in vital statistics records for public
21 health surveillance or research purposes.

22 E. The State Department of Health shall transmit to the
23 Department of Public Safety:

1 1. At the end of each quarter year, a list of all registered
2 deaths which have occurred during such period of time. Upon receipt
3 of such list, the Department of Public Safety shall use such list
4 solely to update Department of Public Safety records and to cancel
5 the driver license for those deceased individuals with a valid
6 Oklahoma driver license at the time of death;

7 2. At the end of each month, a report of all registered deaths
8 that resulted from a motor vehicle collision which have occurred
9 during such period of time. The report shall be used by the
10 Department solely for the purpose of statistical analysis and
11 reporting; and

12 3. Upon written request from the Department, a death
13 certificate. The certificate shall be used solely by the Fatality
14 Analysis Reporting System (FARS) Analyst of the Oklahoma Highway
15 Safety Office to populate the federal FARS database.

16 F. Each month, the Commissioner shall authorize the
17 transmission to the Oklahoma Health Care Authority of a certified
18 list of all registered deaths of residents of this state that have
19 occurred within the state for the immediately preceding month. The
20 Oklahoma Health Care Authority shall use the transmitted list to
21 ascertain the names of those individuals participating in the state
22 Medicaid program who are deceased, and shall thereafter terminate
23 such deceased person's enrollment in the state Medicaid program.

1 G. For the purpose of assisting in the location and recovery of
2 missing children, information pertaining to birth certificates and
3 requests for copies of birth certificates shall be provided to the
4 Oklahoma State Bureau of Investigation pursuant to the provisions of
5 Section 1-323.1 of this title and Section 150.12A of Title 74 of the
6 Oklahoma Statutes.

7 H. The Commissioner shall authorize the transmission of death
8 certificates to the Department of Labor for the purpose of the
9 Department of Labor conducting a census of total occupational
10 injuries and illnesses. The Department shall transmit to the
11 Department of Labor statistics of fatal occupational injuries that
12 shall include the following:

- 13 1. Name of the deceased;
- 14 2. Date of death;
- 15 3. Sex;
- 16 4. Race;
- 17 5. Age;
- 18 6. Birth date;
- 19 7. Social Security number;
- 20 8. Whether an autopsy was conducted;
- 21 9. Month of the accident; and
- 22 10. Whether decedent was of Hispanic origin.

1 I. The Department of Labor shall be required to protect the
2 integrity of the vital statistics records to the same extent
3 required of the Department pursuant to this section.

4 SECTION 2. This act shall become effective November 1, 2025.

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